

26NNCV01553 26NNCV01553

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Case Number: 26NNCV01553 Hearing Date: July 22, 2026 Dept: X

#13 - BRITTANY WOODS vs PRO SERVICE MANAGEMENT INC., et al.

The motion is GRANTED because Plaintiff was previously given leave to cure the threshold representation defect identified in the Court's May 27, 2026 order and Plaintiff did not cure that defect within the time allowed.

The Court may dismiss a complaint against a defendant per Code of Civil Procedure section 581(f)(2) where the defendant's demurrer was sustained with leave to amend and the plaintiff fails to amend within that time. "If the demurrer was sustained as to all causes of action against one of several codefendants, and the time to amend has expired, that defendant may obtain a dismissal by ex parte application to the court." (Rylaarsdam, et al., Cal. Prac. Guide: CPBT, (Rutter Group, 2011), ¶7:145; see Code Civ. Proc., § 581(f)(2); Cal. Rules of Court, rule 3.1320(h).) Such a dismissal is with prejudice: "The failure to amend ... is an admission that plaintiff has stated the case as strongly as he can and there are no facts that could be alleged to cure the defect." (Cano v. Glover (2006) 143 Cal.App.4th 326, 329–330.)

The Court's May 27, 2026 order identified the representation defect, rejected the separate standing ground, and specified the action Plaintiff had to take within a fixed time to cure the defect. Plaintiff was on notice of the defect, a means to cure it, and a definite deadline for doing so. The record shows Plaintiff did not retain licensed California counsel and did not file a First Amended Complaint within the time specified by the Court.

Under these circumstances, dismissal is warranted after expiration of the amendment period. The Court limits this ruling as to dismissing the complaint against Pro Service Management, Inc. Nothing in this order adjudicates Pro Service Management, Inc.'s cross-complaint against Benitez Roofing & Waterproofing, Inc., and nothing in this order dismisses Plaintiff's complaint as to Benitez Roofing & Waterproofing, Inc.

The Clerk shall enter judgment of dismissal with prejudice in favor of Defendant Pro Service Management, Inc. on the complaint.